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General Comment

If it is necessary for the US to develop an “Action Plan” with regard to large language models (which have been incorrectly labeled “artificial intelligence” by those seeking to profit from them), then such a plan must include strict protection of copyrighted material. LLM developers must observe all existing copyright law when seeking training materials for their models; unauthorized use of copyrighted materials (including materials published online) for the training of LLMs constitutes theft. Any US government policy regarding the use of copyrighted material for LLM training must include clear rules and strict penalties for those who break those rules.

The policy must also establish clear guidelines for accountability in decision-making processes that employ LLMs. If a US government agency employs LLMs in a way that harms a human, a human being must be held accountable. Agencies must not be allowed to shirk responsibility for harms by blaming an LLM.